

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 12, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen (arriving at 6:05 p.m.), Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Mr. Shanor moved to suspend the rules to change the order of the agenda to bring forward agenda item #18 (Resolution determining conditions for annexation exist for Swan Ranch II) for action prior to agenda item #7 (Ordinance regarding annexation for Swan Ranch II), seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body present.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Shanor, and pursuant to support received by Mr. Brown and Dr. Rinne, agenda item #20 was removed from the Consent Agenda. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 22, 2013. Motion (per Consent Agenda) carried.

Mr. Valdez declared a conflict of interest (business interest in voucher payable to KYOY-FM) and vacated Council Chambers. Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Valdez returned to Council Chambers. (City Clerk note: Mr. Allen joined the meeting in progress).

RESOLUTION - Determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in portions of Sections 14, 15, 22, 23, 27, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming, to be known as the Swan Ranch II Annexation (located northwest of the intersection of Clear Creek Parkway and Tundra Drive) (Postponed from July 22, 2013). Reporting for Public Services Committee, Mr. Allen moved to adopt, seconded by Ms. Broyles. Comments followed regarding non-support of the annexation due to location of the property, emergency access concerns, proposed zone classification (light industrial/PUD), future costs to the City relative to an anticipated new fire station within the area, maintenance costs of City areas, and a proposed amended and restated Development Agreement introduced on the meeting agenda. Mr. Allen moved to postpone for

two weeks (to Aug. 26, 2013), seconded by Mr. Shanor. Brad Emmons, AVI, agent for the applicant, referenced the current Development Agreement, entered into approximately 2 years ago, noting the agreement states that future developments must come before the City for approval. He stated it is understood things have changed since the initial Development Agreement and, therefore, a revision to the agreement is proposed. Scott Sutherland, Granite Peak Development, advised they have been working for the past two years to move toward the development process, and expressed concern with delay if the postponement were approved as it may affect discussions currently being held with companies interested in locating upon the property. Comments followed in support of postponing the item to allow for further discussion on concerns that have been raised and for Council members to have time to review the proposed amended and restated Development Agreement at the next Finance Committee meeting. Upon inquiry, Mr. Sutherland confirmed that before any sale of parcels can be in place with interested companies, the platting process, which is in conjunction with the annexation action, must be completed first, and Mr. Emmons advised additional hard copies of supporting materials included with the agenda item packet would be provided to Council members. Motion to postpone carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in portions of Sections 14, 15, 22, 23, 27, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming, to be known as the Swan Ranch II Annexation (located northwest of the intersection of Clear Creek Parkway and Tundra Drive). Mr. Allen moved to approve on third and final reading, seconded by Mr. Shanor. Mr. Allen moved to amend by substitute, seconded by Mr. Shanor. Upon inquiry, Jim Flesher, Planning Department, advised the substitute amends Section #5 by inserting a provision that the ordinance will not become effective until the amended and restated Development Agreement between the City and property owners is entered into (and filed). Matt Ashby, Planning Services Director, advised in light of the previous agenda item being postponed, he suggested this item also be deferred to allow related agenda items be approved at the same time. Upon inquiry, Dan White, City Attorney, stated he believed the amendment was proper to move forward. Comments followed in support of the amendment. Motion to amend carried. Voting "yes" -- all members of the governing body. Mr. Allen moved to postpone for two weeks (to Aug. 26, 2013), seconded by Mr. Shanor. Motion to postpone carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, 2.2.2, Planned Development - Regulating Plan or Development Master Plan, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from LI, Light Industrial, and PUD, Planned Unit Development (County) to LI, Light Industrial, and PUD, Planned Unit Development (City) for Lot 1, Block 2, Swan Ranch Rail Park, First Filing, Lots 1 through 4, and 6, Block 1, Swan Ranch Rail Park, Fourth Filing, all of Swan Ranch Rail Park, Fifth Filing, all of Swan Ranch Rail Park, Seventh Filing, a parcel of land situated in a portion of the north half of Section 27, T.13N., R.67W., 6th P.M., and portions of Sections 14, 15, 22, and 23, T.13N., R.67W., 6th P.M. to be known as Swan Ranch Rail Park, Eighth Filing, Cheyenne, Wyoming (located east of and adjacent to Clear Creek Parkway and north of and adjacent to Tundra Drive). Mr. Allen moved to approve on third and final reading, seconded by Mr. Shanor. Mr. Allen moved to amend by

substitute, seconded by Mr. Shanor. It was noted the substitute amends the entitlement to correct a clerical error contained at the end of the title by changing "... (located east of and adjacent to Clear Creek Parkway ...)" to "... (located west of ...)". Motion to amend carried. Voting "yes" -- all members of the governing body. Comments followed regarding postponing the item as it was affiliated with the previous items that had been postponed, and that wording in the ordinance provides that if the ordinance was approved it would not be effective until the annexation ordinance and final plat were approved and filed. Main motion as amended carried. Voting "yes" -- all members of the governing body with the exception of Mr. Brown voting "no". (#3989)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-2 Medium Density Residential – Developing to CB Community Business for Lot 4, Block 1, Kornegay Homesites, 2nd Filing, Cheyenne, Wyoming (located north of and adjacent to Kornegay Court, between Yellowstone Road and Sunset Drive). Mr. Allen moved to approve on third and final reading, seconded by Dr. Rinne. Comment followed that the change should increase buffering in the area. Motion carried. Voting "yes" -- all members of the governing body. (#3990)

ORDINANCE - Vacating a portion of Evans Avenue adjacent to Lot 10, Block 12, Pershing Heights Addition, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 4th and Evans Avenues). Mr. Allen moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body. (#3991)

ORDINANCE - Vacating portions of Van Buren Avenue and Cheyenne Street adjacent to Tracts 145, 146, 147 and 148, Sunnyside Addition, 5th Filing, Cheyenne, Wyoming (located north of E. Pershing Boulevard and east of Polk Avenue). Mr. Allen moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body. (#3992)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from AR Agricultural Residential to LI Light Industrial for Lots 1-3, Block 1, Polk Addition, Cheyenne, Wyoming (located at the northeast corner of the intersection of E. Pershing Boulevard and Polk Avenue). Mr. Allen moved to approve on third and final reading, seconded by Mr. Cook. It was noted that County Planning staff had attended a Public Services Committee meeting expressing buffering concerns and suggesting a different zone classification, and following discussion with staff it was determined the proposed zone change type was appropriate for the development and area involved and addresses some of the buffering concerns. Motion carried. Voting "yes" -- all members of the governing body. (#3993)

ORDINANCE - Amending various sections of Title 8, Health and Safety, Chapter 8.44, Solid Waste, of the Cheyenne City Code, pertaining to the general provisions of the Solid Waste Code. Providing comments on the ordinance topic were: Jeff Tray, Aspen Real Estate, owner

of business property involving tenants; Dick O’Gara, Board President, Downtown Development Authority; Tim Bieligg, downtown business tenant; Phil Herrick, downtown business property owner; Julie Gliem, Cheyenne Landlords Association; Karlana Johnson, co-owner, The Kat’s Meow, downtown business tenant; Glen Garrett, downtown business and office building owner, and Major Dorr. Topics discussed included: Concerns with the current rate structure relative to increases in rates and resulting financial increase to tenants; multiple businesses housed in one commercial building; occurrence of solid waste pick-ups, rates for those operating businesses out of their homes vs. commercial districts; rate inequities; support for the proposed ordinance; inappropriate use of assigned dumpsters by unauthorized persons; support for recycling efforts; current fee structure and financial hardship on small businesses; generation of minimal waste relative to container size and fees and concerns affiliated with unauthorized dumping. During comments and in response to inquiries, Mayor Kaysen advised, like most businesses, the City’s cost of providing services increases with proposed rate increases reviewed by the governing body, and Jim Elias, Director of Public Works, provided information on current solid waste provisions, including service fees, container sizes, pick-up schedule and code enforcement involvement for unauthorized container users. Reporting for Finance Committee, Mr. Brown moved to approve on second reading, seconded by Mr. Luna. Upon inquiry, Mr. Elias provided information on procedures available (i.e. contact Sanitation office) with regard to vacant properties or owners who wish to request temporary suspension of services. Discussion followed and included support for a fee study involving the entire sanitation rate system; loss of revenue to the City if the proposed ordinance was approved and concerns/options on how to make up the budget revenue deficit amount; comments in support as well as non-support of the rate change; number of commercial accounts that may be affected by the change; “pay as you throw” programs; January 1, 2014 ordinance effective date, if approved; inequities in rate structure; fair and justifiable laws and policies; feasibility of implementing the rate change on a trial (one year) basis; effect of the rate change; delaying any rate changes until an overall system fee study is conducted and anticipated time frame in which to conduct a study, and legal requirement to have a balanced budget. During discussion, it was clarified if the ordinance were approved the estimated amount of lost revenue would be approximately \$325,000 annually, and Mr. Elias advised of the estimated number of commercial containers currently being utilized. Mayor Kaysen stated a proposed resolution, also on the meeting agenda, would provide for looking at the entire structure of sanitation services, including fees and efficiencies, and recommendations. Motion carried. Voting “yes” -- Mr. Allen, Mr. Cook, Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams. Voting “no” -- Mr. Brown, Ms. Broyles, Dr. Rinne and Mayor Kaysen.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MUB Mixed-Use Business Emphasis to P Public for a portion of Lot 1, Block 2, and ½ of vacated Vosler Place, Plaza Del Range, Cheyenne, Wyoming (located at the northwest corner of the intersection of Sheridan Street and Ridge Road) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 Agricultural and Rural Residential (County) to MUR Mixed-Use Residential Emphasis for Snyder Plaza, Cheyenne, Wyoming (located east of and adjacent to Snyder Avenue, north of W. Allison Road) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 and MU (County) to CB Community Business for a parcel of land situated in a portion of the South Half of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as Lots 1 and 2, Block 1, Terre Pont (located at the northeast corner of the intersection of Frontier Mall Drive and Prairie Avenue) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Amending, creating, deleting and re-creating various chapters and sections within Title 15, Buildings and Construction, of the Cheyenne City Code relating to General Provisions, and including Adoption of the International Building Code and other Related Codes, 2012 Edition; The National Electrical Code, 2011 Edition; and the International Energy Conservation Code, 2009 Edition -- referred to Public Services Committee (sponsor -- Mr. Allen).

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Teton Business Park, a replat of Lots 1 thru 4, inclusive, Block One, Classic Subdivision, Cheyenne, Wyoming (located at the northeast corner of the intersection of Westland and Old Happy Jack Roads) (Postponed from July 22, 2013). Mr. Allen moved to adopt, seconded by Mr. Shanor. Mr. Allen moved to postpone to August 26, 2013, seconded by Mr. Brown. It was advised the postponement is at the request of the developer to allow for review of soil testing results. Motion to postpone carried. Voting "yes" -- all members of the governing body.

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Polk Addition, a replat of Tracts 145-148, Sunnyside Addition, 5th Filing, a replat of a portion of vacated Van Buren Avenue, a replat of a portion of vacated Cheyenne Street, Cheyenne, Wyoming (located at the northeast corner of the intersection of E. Pershing Boulevard and Polk Avenue) (Postponed from July 22, 2013). Mr. Allen moved to adopt, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body. (#5510)

[CA] RESOLUTION - Authorizing the Submittal of an Application to the Wyoming Water Development Commission for grant funding for engineering services and other administrative costs for Phase III of the Southern Water Transmission Main Project in the amount of \$1,206,000 and authorizing the Mayor, City Clerk and Director of the Board of Public Utilities to execute the application and all related documents. Motion (per Consent Agenda) carried. (#5511)

RESOLUTION - Authorizing the City staff to conduct a study of the solid waste collection and disposal system, conduct a rate study and review the feasibility of converting the solid waste system to an enterprise fund. Commenting in favor of the resolution were: Dick O'Gara, Board President, Downtown Development Authority; Jeff Tray and Tim Bieligk. Topics presented included: Incentives to reduce waste and "pay as you throw" programs to reduce landfill space, support for a rate study, and current rate inequities which may exist. Mr. Bieligk commented that a study would prevent the executive branch of City government from making private deals regarding sanitation fees and he stated his belief that such deals had been made. Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to adopt, seconded by Ms. Broyles. Upon inquiry requesting an explanation of his previous comment regarding private deals, Mr. Bieligk stated one of the points he was hinting

at was that a study would assist in preventing any private deals being negotiated between private property owners and [City] executives, and that fee structures and ordinances be followed. Discussion followed pursuant to further inquiry to Mr. Bielighk on his implied allegation of a private deal being negotiated. Mayor Kaysen relinquished duties of the chair to Council President Rinne to enable him to participate in discussion. Following comments which involved further inquiries, Mr. Bielighk admitted that he was “alleging hearsay”. President Rinne then requested Mr. Bielighk to submit any written documentation involving his implied allegation to the City Attorney by the close of business on Friday (August 30, 2013). Discussion followed in support of the proposed study and the components and purpose of the study, information to Council members during the study process, and estimated “ballpark” cost for the study. Upon inquiry, Jim Elias, Public Works Director, advised the cost of the study is estimated to be approximately \$30,000-\$50,000 with funding from the solid waste fund. Motion carried. Voting “yes” - all members of the governing body with the exception of Mr. Valdez voting “no”. Following announcement of the vote, President Rinne returned duties of the Chair back to Mayor Kaysen. (#5512)

Following a 10 minute recess, Mayor Kaysen reconvened the meeting at 8:20 pm.

[CA] RESOLUTION - Approving Outside User Water/Sewer Services, by User’s Agreement, with Longhaul Enterprises, LLC, Lot 3, Block 1, Swan Ranch Rail Park, 4th Filing, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#5513)

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Swan Ranch Rail Park, Eighth Filing, a Replat of Swan Ranch Rail Park, Sixth Filing, and portions of Sections 14, 15, 22, 23 and 27, T.13N., R.67W., 6th P.M., Cheyenne, Wyoming (located northwest of the intersection of Tundra and Clear Creek Parkway). Mr. Allen moved to adopt, seconded by Mr. Shanor. Mr. Allen moved to amend to include staff recommendations #1 through 3, seconded by Mr. Brown. Staff recommendations were recited for the record as follows: 1) Enter into a revised development agreement addressing future road improvements that may be necessary depending on the amount of traffic generated within the development; 2) Dedicate to the City Lot 18, Block 2, for a future fire station location or enter into an agreement with the City regarding dedication of land for a fire station; 3) The Governing Body endorse a study of the costs of new development for making policy decisions in the future that are definitive about who pays for capital investments necessitated by development (i.e., road improvements, fire station, etc.). Buck Holmes, Laramie County Commissioner, questioned the effect on the developer if the land was not annexed and it was advised the plat would not become effective if the annexation is not approved. Brad Emmons, AVI, agent for the applicant, advised if annexation was not approved, they would like to proceed with the project through the County platting process. Scott Sutherland, Granite Peak Development, requested the plat be approved to enable them to move forward with communication efforts with parties interested in developing on the site. Comment was made relative to staff recommendation #3 and whether it was applicable to the resolution. Dr. Rinne moved to divide the question to allow for a separate vote on staff recommendation #3, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Allen, Mr. Luna and Ms. Williams voting “no”. Discussion on staff recommendation #3 followed. Matt Ashby, Planning Services Director, clarified that staff had identified this recommendation as being an important study to conduct, which was confirmed by the Planning Commission to include as a recommendation.

During further discussion and, upon inquiry, Mr. Ashby advised he did not foresee this type of recommendation being proposed on a regular basis but that it was associated enough with the conversations on this proposed plat to request the study; provided information on the estimated time frame in which to conduct the study; anticipated study costs relative to components that would be studied and identification of a funding source for the study by City Council as funding is not within Planning's current budget; pending development actions that could be impacted if plat approval was delayed, and beneficial information on how to address growth related issues that can be obtained as the result of a study. Upon inquiry, Dan White, City Attorney, advised his belief that the recommendation should probably be acted upon as a separate resolution and not included with the final plat action as it is not usually associated with approval of a plat. Discussion continued and included verification that the re-zoning ordinance for the property had been approved earlier in the meeting. Mr. Ashby suggested that cost of the study could be recouped through future fees, and discussed a possible time frame for a separate resolution to be introduced and approved. Motion to approve the inclusion of staff recommendation #3 in the previous motion to amend failed. Voting "yes" -- Mr. Brown. Voting "no" -- Mr. Allen, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez, Ms. Williams and Mayor Kaysen. Discussion on staff recommendations #1 and 2 included a request by Mr. Emmons that the resolution be postponed for 2 weeks due the development potentially changing to a county plat vs. city plat process if the annexation ordinance was not approved. Dr. Rinne raised a point of order as to the motion on the floor with Mayor Kaysen clarifying that discussion was currently being entertained on the motion to amend which now includes staff recommendations #1 and 2. Motion to amend to include staff recommendations #1 and 2 carried. Voting "yes" -- all members of the governing body with the exception of Mr. Brown voting "no". Mr. Brown moved to postpone for 2 weeks (to Aug. 26, 2013), seconded by Ms. Broyles. Motion to postpone carried. Voting "yes" -- all members of the governing body.

[CA] RESOLUTION - Approving the Title VI Program for the Cheyenne Transit Program, Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#5514)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Deerhaven Subdivision, 2nd Filing, a replat of Lot 1, Block 2, Deerhaven Subdivision, Laramie County, Wyoming (located at the southeast corner of the intersection of Montalto Drive and E. Fox Farm Road) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Authorizing the filing of an application with the Federal Transit Administration, and Operating Administration of the United States Department of Transportation, for Federal Transportation Assistance Authorized by Title 49, United States Code, Section 5307 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and City Clerk of the City of Cheyenne to enter into an amended and restated Development Agreement with Granite Peak Development, LP, Clear Creek Land Company, LLC, and Swan Ranch, LLC to define the rights and obligations of the parties relating to the annexation and future economic development of the land generally

described as the “Swan Ranch Development Area” -- referred to Finance Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Authorizing submission of an Application to the Wyoming Business Council, Business Ready Community Grant and Loan Program for funding through the Downtown Development Grant and Loan Program for an elevated walkway -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne to assist in financing the Logan Avenue Sanitary Sewer Rehabilitation Project - Nationway to East Pershing Boulevard -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Preliminary Plat for Snyder Plaza, a replat of a portion of Blocks 80 and 81, formerly known as Interior Heights Addition, now vacated, being a portion of the NE¼ of Section 7, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming (located east of and adjacent to Snyder Avenue, north of W. Allison Road) -- referred to Public Services Committee.

[CA] Preliminary Plat for Terre Pont, a portion of the South Half of Section 20, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (located at the northeast corner of the intersection of Frontier Mall Drive and Prairie Avenue) -- referred to Public Services Committee.

[CA] Contract between the Wyoming Department of Transportation and the City of Cheyenne, Public Works Department, to provide Transit Division with funding to purchase two replacement buses (Wyoming Department of Transportation funding). Motion (per Consent Agenda) carried. (#6039)

[CA] Professional Services Agreement between the City of Cheyenne, Public Works Department, and United Way of Laramie County, for Technical Assistance to Human Services Community Programs. Motion (per Consent Agenda) carried (amount not to exceed \$250,000.00 annually/2 year term). (#6040)

[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and AP Wyoming, LLC, Cheyenne, Wyoming for Construction Manager at Risk Services for the renovation and expansion of the Municipal Pool (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$477,966.00). (#6041)

[CA] Use Agreement between the City of Cheyenne, Engineering Department, and Zayo Group, LLC, to install a fiber optics line crossing a portion of the Belvoir Ranch (revenue to City). Motion (per Consent Agenda) carried (revenue to City). (#6042)

[CA] Contract between the City of Cheyenne, Police Department, and Wyoming Division of Criminal Investigation for task force officers to serve as members of a joint drug enforcement team. Motion (per Consent Agenda) carried. (#6043)

[CA] Lease Agreement between City of Cheyenne, Parks and Recreation Department, and the Wyoming Department of Environmental Quality for air monitoring/quality in the North Cheyenne Community Park (revenue to City) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Stride Learning Center to provide cooperative transit services (revenue to City) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Youth Alternatives, and Laramie County Community Partnership, Inc., for academic and enrichment activities for at-risk school-age youth at Johnson Junior High School (21st Century Community Learning Centers Cohort Eight Grant funds) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County, Wyoming, for juvenile probation services -- referred to Finance Committee.

[CA] Lease Agreement between City of Cheyenne, Information Technology Division, and Xerox by Xerox Agent XESI for a high volume production black and white copier -- referred to Finance Committee.

[CA] Consideration of FAA Grant #3-56-0005-49 between the City of Cheyenne, County of Laramie, and the Cheyenne Regional Airport Board in an amount not to exceed \$1,000,000.00 for the Rehabilitation of Runways 9/27 and 13/31 (rubber removal and paint), Rehabilitation of taxiways (paint), and the Rehabilitation of the lighting control system -- referred to Finance Committee.

[CA] Agreement between Owner and Architect, Standard Form of Architect's Services, and Exhibit A (AIA Documents B102-2007 and B201-2007) between the City of Cheyenne and Pappas & Pappas Architects, P.C., for design and construction contract administration services for the new Cheyenne Public Safety Center, 17th and Pioneer, Cheyenne, Wyoming -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization, and A.V.I. p.c., for Division Avenue Corridor/Wallick Road Preliminary Design Plan (Metropolitan Planning Organization funds) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5928 between the City of Cheyenne, Parks and Recreation Department, and S & S Builders, LLC, Cheyenne, Wyoming, for additional work to complete Pioneer Park Parking Lot Improvements (Parks Facilities funds. Motion (per Consent Agenda) carried (amount not to exceed \$88,854.35). (#5928)

[CA] Consideration of Bid #R-2-14 to purchase two replacement vehicles with two $\frac{3}{4}$ ton trucks and two new $\frac{3}{4}$ ton trucks for the Parks and Recreation Department (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Spradley Barr Motors, Cheyenne; amount not to exceed \$106,120.00).

[CA] Consideration of Bid #M-18-13 for annual contracts for snow removal and other services (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from JTL Group Inc. d/b/a Knife River, Cheyenne, and S&S Builders, LLC, Cheyenne). (#6044/#6045)

[CA] Consideration of Bid #R-4-14 for furnishing and installing miscellaneous police car equipment for the City of Cheyenne, Police Department, from L.A.W.S. of Englewood, Colorado (2011 - 2014 1% Sales Tax, State Land and Investment Board) -- referred to Finance Committee.

[CA] Consideration of Bid #M-3-14 for a contract between the City of Cheyenne, 1% Construction Division, and JTL Group Inc., d/b/a Knife River, Cheyenne, Wyoming, for the Campstool Road Overlay Project (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-3-14 for furnishing bulk ice control product to the City of Cheyenne, Public Works Department (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-1-14 for a contract between the City of Cheyenne, Parks & Recreation Department, and Caylor & Genz Earthmovers, Inc., Torrington, Wyoming, for the Lake Minnehaha Remediation Plan, Phase 1 Project (State & Local Grants) -- referred to Finance Committee.

[CA] Consideration of Bid #M-2-14 for a contract between the City of Cheyenne, Parks & Recreation Department, and Reiman Corporation and Subsidiary, Cheyenne, Wyoming, for the Renovation and Expansion of the Cheyenne Botanic Gardens Phase 1 - Roads Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Annual Report to the City of Cheyenne regarding capital improvements made at the Airport Golf Course as required by Lease Agreement. Motion (per Consent Agenda) carried (acknowledge receipt).

[CA] Consideration to purchase 10 Motorola APX6500 mobile radios for the Cheyenne Police Department from Absolute Solutions, Cheyenne, Wyoming (Homeland Security funds) -- referred to Finance Committee.

Re-appointment of Jane M. France to the Community Action of Laramie County, Inc. Board of Directors. Mr. Shanor moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Announcement was made of a Public Hearing to be held Monday, August 26, 2013, at 6:00 P.M. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the South Half of Section 20, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, to be known as the Terre Pont Annexation (located at the northeast corner of the intersection of Frontier Mall Drive and Prairie Avenue).

Announcement was made of a Public Meeting to be held Monday, August 26, 2013, at 6:00 P.M. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for the purpose of receiving public comment on the submission of a 5307 Federal Grant to fund transportation services by Cheyenne Transit for Fiscal Years 2013/2014.

Announcement was made of a Public Hearing to be held Monday, August 26, 2013, at 6:00 P.M. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive public comment regarding the intent of the City of Cheyenne to submit an application for funding to the Wyoming Business Council's Business Ready Community, Downtown Development Grant Program to construct an elevated walkway over Pioneer Avenue to the Jack R. Spiker downtown parking garage to provide access to parking for a national hotel franchise in Cheyenne's downtown.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:56 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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